

covenant for that purpose, to produce them to the owners of the other parts. The real property commissioners, however, observe, that previously to this case it had been supposed, either that an original independent equity existed entitling any party interested in a deed to call for its production by any other person having the custody of it, or *at least* that such an equity existed wherever the parties requiring the production claimed under a person who had *taken the precaution to procure a covenant for that purpose*, and the person having the actual custody of it derived that custody from or through a person who had entered into such covenant (e); upon which Lord St. Leonards observes, that the rule in equity was never so universal as it is quoted in the first part of the above statement, but that the second branch, stating what *at least* the doctrine was, appears to be correct (f). It is submitted that even where a vendor has taken no such covenant from the purchaser, the vendor, and those claiming under him, would have a right to production of the deeds as common property.

28. **Constructive trustees from notice of the trust.**—Constructive trusts are said also to arise where the trust estate is converted by the trustee from one species of [*193] property into *another; and again, where the trust estate passes from the trustee into the hands of a volunteer whether with or without notice, or of a purchaser for valuable consideration with notice; but as these are cases rather of an existing trust continued and kept on foot than of a new trust created, the consideration of these topics will be reserved to a subsequent part of the treatise.

In concluding the subject of trusts by *operation of law*, it may be proper to offer a few remarks on the wording of the Statute of Frauds (a).

Statute of Frauds as affecting trusts by operation of law.—By the eighth section it is enacted, that “where any convey-

(e) 3d Rep.

(f) Vend. & Purch. 14th ed. 454, note (1).

(a) 29 Car. 2, c. 3.